



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Athen Mores
Subject: PUDC-24-28 | Toledo Annexation 4204 Dell Range Boulevard – Annexation
Date: April 8, 2024

Background:

The item for consideration is an annexation. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 04/08/2024
- Public Services Committee 04/16/2024
- Second reading 04/22/2024
- Public Services Committee 05/07/2024
- Third and final reading 05/13/2024

Attachments:

1. Ordinance
2. Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, LAND LOCATED AT 4204 DELL RANGE BOULEVARD."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

(a) Gabino Toledo, owners of:

A PARCEL OF LAND SITUATE IN A PORTION OF THE SOUTHWEST QUARTER (SW¼) SOUTHEAST QUARTER (SE¼) SECTION 22, T. 14 N., R. 66 W., 6TH P.M., LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS: BEGINNING AT THE INTERSECTION OF THE EAST LINE OF GRIFFITH AVENUE AND THE NORTH LINE OF DELL RANGE BOULEVARD; THENCE N. 00°32'00"W. ALONG THE SAID EAST LINE A DISTANCE OF 252.00 FEET TO THE SOUTHWEST CORNER OF NORTHWOODS COMMUNITY CHURCH SUBDIVISION; THENCE S 89°38'00" E. A DISTANCE OF 277.18 FEET TO THE SOUTHEAST CORNER OF SAID SUBDIVISION AND A POINT ON THE WEST LINE OF MISSION VILLAGE; THENCE S. 00°32'00" E. ALONG THE SAID WEST LINE A DISTANCE OF 252.23 FEET TO THE SOUTHWEST CORNER OF SAID MISSION VILLAGE AND A POINT ON THE NORTH LINE OF DELL RANGE BOULEVARD; THENCE N. 89°35'06" W. ALONG THE SAID NORTH LINE A DISTANCE OF 277.18 FEET TO THE POINT OF BEGINNING.

have petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof;

- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Cotton Jones, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 9834;
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne;
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical, and social part of the City of Cheyenne;
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason,

be furnished;

- (f) That the area is adjacent to the City of Cheyenne and is currently zoned MR Medium Density Residential by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

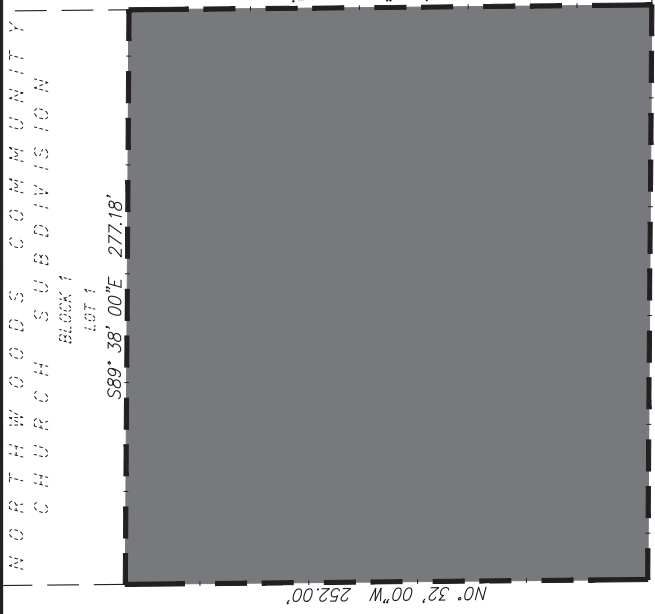
PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



DELL RANGE BOULEVARD (80' RW)

SUBDIVISION CORRECTED BLOCK 7

VICINITY MAP

LEGEND

- PROPOSED AREA FOR ANNEXATION
- EXISTING CITY LIMITS
- FOUND 1/2" IRON PIPE

FILED RECORD

LEGEND

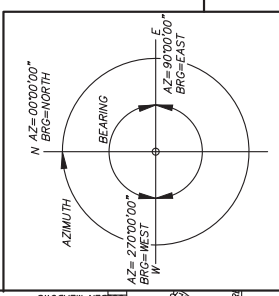
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EXISTING CITY LIMITS

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AZIMUTH



LAND DESCRIPTION

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SAID PARCELS CONTAIN 1.06 ACRES OR 69,873 SQUARE FEET MORE OR LESS.

NOTES

- DISTANCES SHOWN ON THE ANNEXATION MAP ARE GROUND DISTANCE.
- THE AREA WITHIN THE HEAVY BOUNDARY IS CURRENTLY A COUNTY POCKET. ALL AREAS OUTSIDE THE BOUNDARY ARE WITHIN THE LIMITS OF THE CITY OF CHEYENNE.
- LENGTH OF THE PARCEL BOUNDARY ABUTTING THE CITY LIMITS - 1,056' (ALL SIDES OF THE PARCEL AS SHOWN ARE BOUNDED BY THE CITY LIMITS).
- RATIO OF THE BOUNDARY ABUTTING THE CITY LIMITS - 100% OF THE TOTAL
- CERTAIN POCKET PARCELS ARE DEPICTED FROM MAPS, PLATS AND DEEDS OF RECORD AND WERE NOT DETERMINED FROM ACTUAL FIELD SURVEYS.

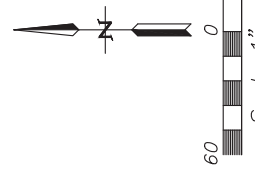
APPROVALS

APPROVED BY THE CITY COUNCIL OF THE CITY OF CHEYENNE, WYOMING, THIS _____ DAY OF _____, 2024.

MAYOR - PATRICK COLLINS
ATTEST: CITY CLERK - KRISTINA F. JONES

SURVEYORS CERTIFICATE

I, COTTON D. JONES, A REGISTERED PROFESSIONAL LAND SURVEYOR IN THE STATE OF WYOMING, HEREBY STATE THAT THESE ANNEXATION MAPS WERE PREPARED FROM OFFICIAL PLATS AND DEEDS OF RECORD AND/OR FROM NOTES OF A FIELD SURVEY CONDUCTED BY MYSELF AND UNDER MY DIRECT SUPERVISION DURING THE MONTHS OF DECEMBER, 2023, THAT THE MONUMENTS ARE SET OR FOUND AS SHOWN AND THAT THESE MAPS CORRECTLY REPRESENT SAID SURVEYS AND MAP AND DEED DESCRIPTIONS OF THE LANDS DEPICTED HEREON TO THE BEST OF MY KNOWLEDGE.



Scale 1" = 60'

LAND SURVEYING, INC.

CERTIFIED FEDERAL SURVEYOR

6750 Sky Kally Rd., Cheyenne, WY 82009
Ph: 307-637-7107 Cell: 307-630-8550
FAX: 307-778-3979
www.joneslandsurvey.com

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Drawn by: CDJ
Date: JANUARY, 2024

ANNEXATION MAP FOR 4204 DELL RANGE BLVD.
A PARCEL OF LAND SITUATE IN A PORTION OF THE SOUTHWEST QUARTER (SW¼) SOUTHEAST QUARTER (SE¼) SECTION 22, T. 14 N., R. 66 W., 6TH P.M., LARAMIE COUNTY, WYOMING



A COMMUNITY OF CHOICE

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CITY OF CHEYENNE GOVERNING BODY

April 8, 2024

STAFF REPORT

FILE: PUDC-24-28 Toledo Annexation

REQUEST: Annexation of land 1.60 Acres

LOCATION: 4204 Dell Range Blvd.

AGENT: Cotton Jones

OWNERS: Gabino Toledo, Na Zhang

PURPOSE: Annexation for access to City sewer services

PREPARED BY: Athen Mores- Planner- Development



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.4.2 Annexations
- PlanCheyenne

BACKGROUND:

The applicant is requesting annexation of 1.60 acres of land into the city. The property is a county pocket that is surrounded by 100% city limits. The land is occupied by 1 home, 1 detached garage, 1 barn, and 5 other structures ranging from sheds, out buildings, and livestock shelters. The property is currently zoned as MR Medium Density Residential in the County and has a future land use of Urban Residential.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Residential	County MR Medium-density Residential	Rural Residential
North	Urban Residential	MR	Church
South	Urban Residential	MR	Single-family detached Residential
East	Urban Residential	MR	Multi Family Residential
West	Urban Residential	MR, County MR	Single-family detached Residential

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

To accept the petition to annex and approve the annexation Ordinance, the Governing Body must make the following findings required in WS 15-1-402; a detailed analysis of which is below:

1) An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town. [WS 15-1-402 (a) (i)]

The annexation of this property will increase the health, safety, and welfare of the current occupants. By being in City limits, the property will receive access to City Fire and Police and sanitation services. The property, if occupied, will also be required to be connected to City water and sanitary sewer instead of having wells and septic systems.

The application **complies** with this review criterion.

2) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town. [WS 15-1-402 (a) (ii)]

This property will constitute a natural, geographic, economic, and social part of the city. The property is bordered by 100% city limits in each direction, and is part of a County pocket. The contiguity to the City and the proximity to surrounding urban-style development makes the

parcel a natural geographic part of the City. The development of this property will benefit those who live within the City and will be a part of the social and economic fabric that is Cheyenne.

The application **complies** with this review criterion.

- 3) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed. [WS 15-1-402 (a) (iii)]**

The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to residents will also be made available. Police and fire protection will be extended upon annexation. Utilities exist in the area and will be expanded into the proposed area as it develops.

The application **complies** with this review criterion.

- 4) The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407. [WS 15-1-402 (a) (iv)]**

The area proposed for annexation is 100% contiguous.

The application **complies** with this review criterion.

- 5) If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. 15-1-410. [WS 15-1-402 (a) (v)]**

Utility companies are in place to serve the annexed area.

The application **complies** with this review criterion.

- 6) The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date and location of the public hearing required by W.S. 15-1-405(a). [WS 15-1-402 (a) (vi)]**

A certified mailing was mailed to the landowners and public utilities on March 8, 2024. The public hearing for this annexation is scheduled for April 8, 2024. Twenty (20) business days (on the City's calendar) prior to the announced public hearing is March 11, 2024. The earliest confirmation of receipt was dated March 11, 2024.

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne

Policies within PlanCheyenne encourage the annexation of County pockets. This is part of a County Pocket.

The Future Land Use Map of PlanCheyenne, as updated by Connect 2045, anticipates this area of the community to develop with urban density residential development. These areas are expected to develop with full access to urban services – such areas are best served by being within City limits. The area is within the Urban Service Boundary.

STAFF REVIEW:

Through the review process, no comments were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria and therefore recommends approval of the annexation.

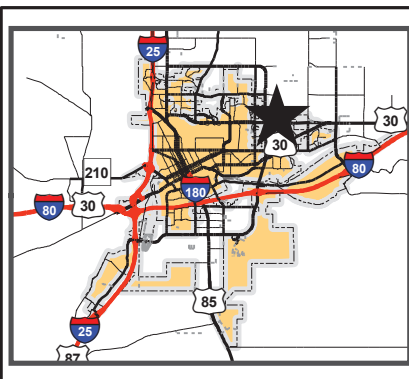
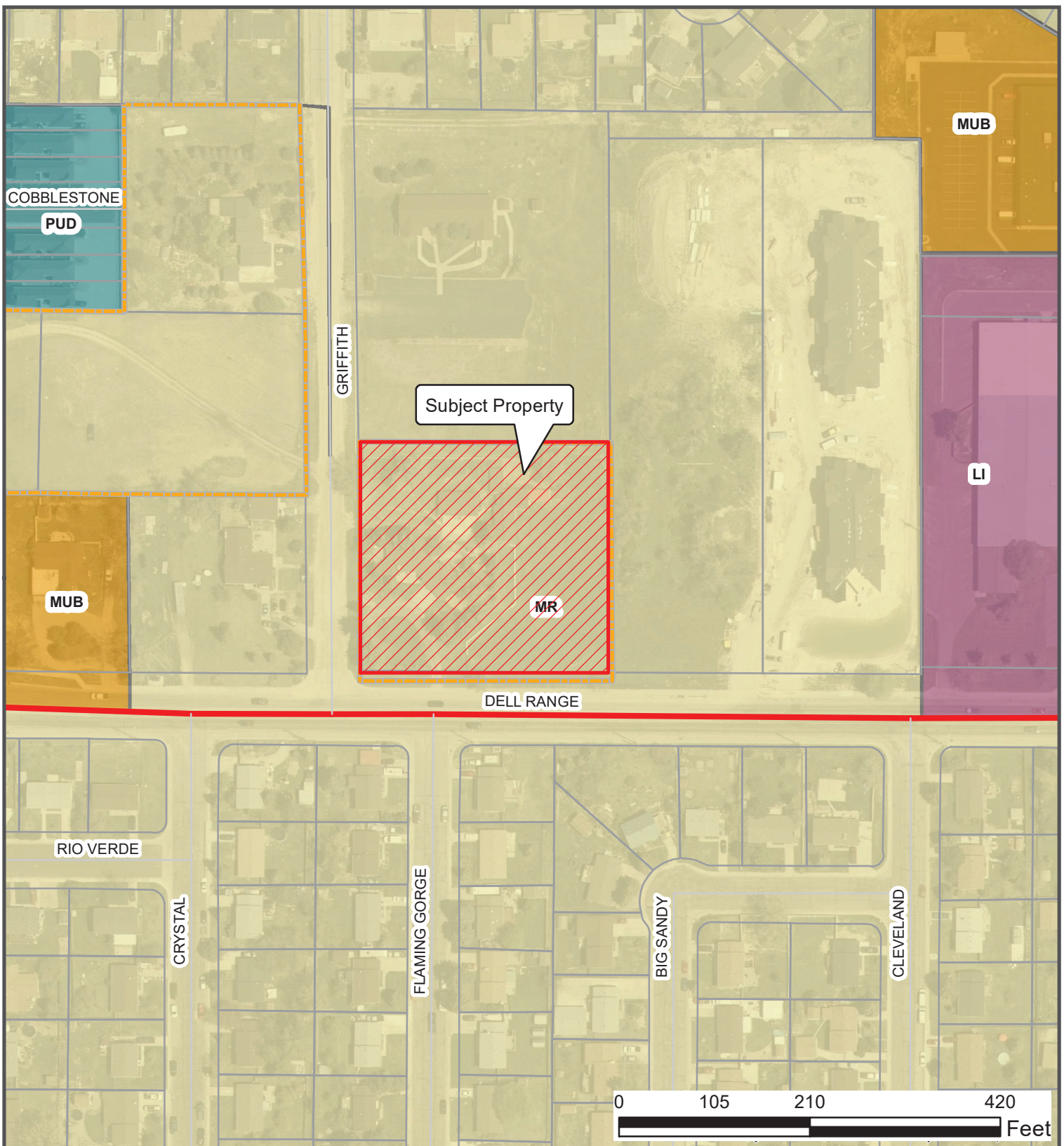
The proposed annexation is a natural extension of the City, is contiguous to the current City limits, and most services typically available to urban areas are available to be extended to this property.

STAFF RECOMMENDATION:

Staff recommends approval of the annexation of the property.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Submitted Application
4. Applicant-submitted annexation map

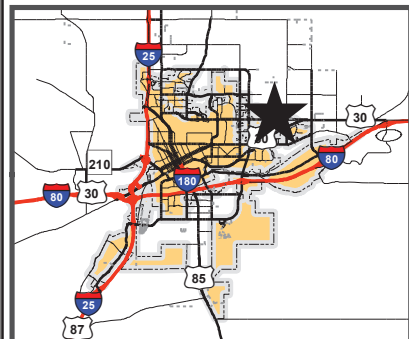
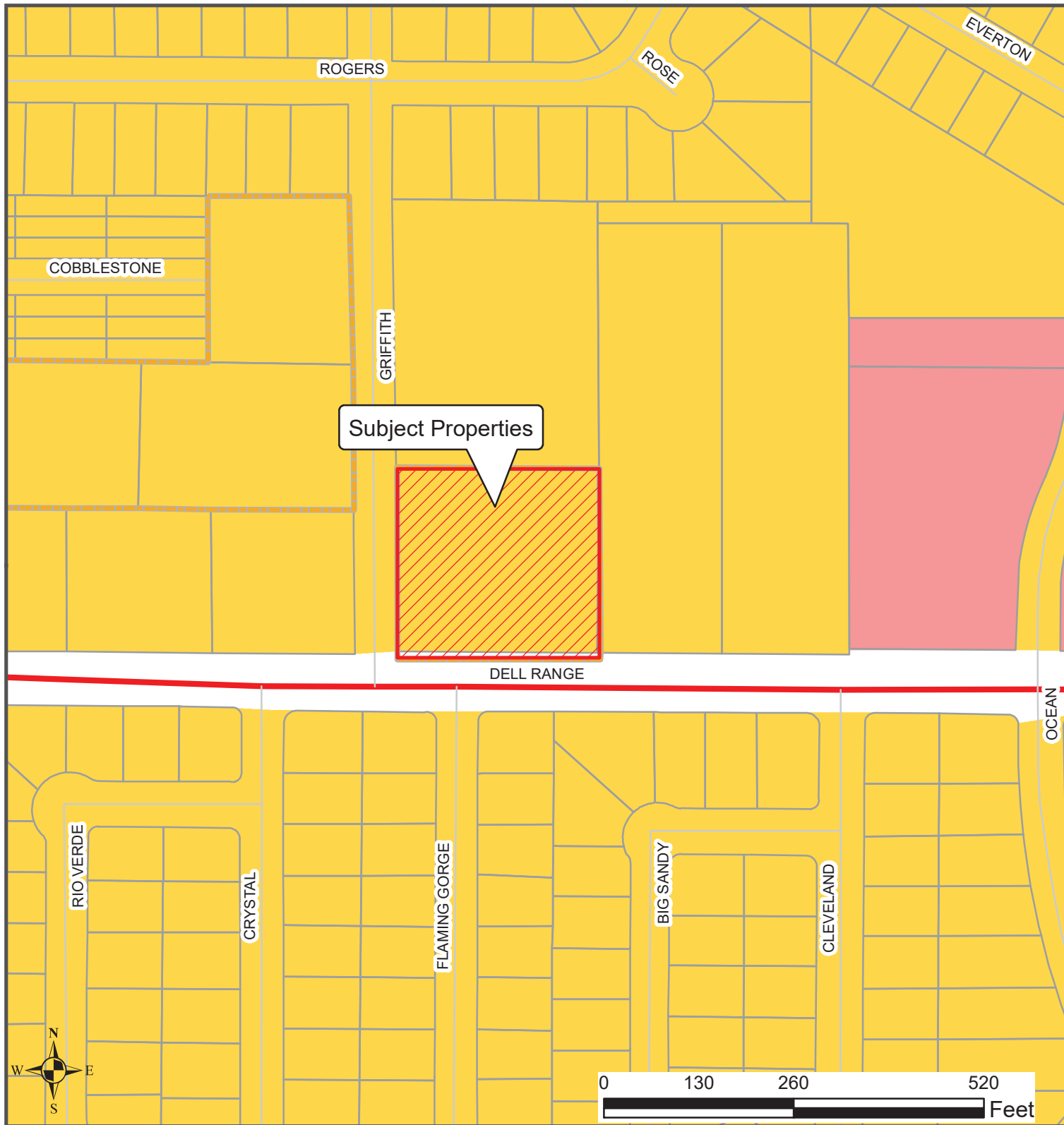


Attachment 1: Zoning Map PUDC-24-28

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map PUDC-24-28

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Legend

City Limits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		



Cheyenne, WY

2/15/2024

PUDC-24-28

Annexation

Status: Active

Submitted On: 2/14/2024

PIDN: 14662240000200

Primary Location

4204 DELL RANGE BLVD

Cheyenne, WY 82009

Owner

TOLEDO, GABINO ET UX

1437 S TERRY ST

LONGMONT, CO 80501

Applicant

 Cotton Jones 307-630-8550 cotton.jones@msn.com 6750 Say Kally Rd
Cheyenne, WY 82009

Application Information

This application has a deadline. The deadline is the second Wednesday of the month. Application Schedule.

Please Note: Annexation applications may **not be withdrawn** (Wyoming State Statute 15-1-403 b). If mylars are not provided in an attempt to 'withdraw' the application, the City will hire a surveyor to produce mylars and invoice the applicant for the work preformed.

The property owner is aware this application may not be withdrawn.*



I understand final stamped and signed mylars are required prior to final Governing Body approval.*



Project Name* 

Toledo Annexation

Annexation Type*

Landowner Petition

Pursuant to UDC 2.4.2 and 2.2.8, the City zone assigned will be the standard City zone most closely matching the current County zone. If the assigned zone is not the desired zone, please also apply for a zoning map amendment. The anticipated assigned zoning based on the current County and City zoning requirements can be found on a policy document [here](#).

Annexation Review Criteria

The following review criteria are found in Wyoming State Statute regarding annexation. Please acknowledge the proposed annexation meets each review criterion by checking the box.

An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town (15-1-402 a i)*



The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town (15-1-402 a ii)*



The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed (15-1-402 a iii)*



The area sought to be annexed is contiguous with  or adjacent to the annexing city or town (15-1-402 a iv)*



Percent Contiguous*

100

No tract of land or any part thereof, whether consisting of one (1) parcel or two (2) or more contiguous parcels owned by one (1) landowner or owned jointly by two (2) or more landowners as cotenants, which comprises forty (40) acres or more and which together with the buildings or improvements situated thereon has an assessed valuation in excess of forty thousand dollars (\$40,000.00) as of the current assessment for property tax purposes, may be annexed without the written consent of the landowner or landowners, unless the tract of land is situated entirely within the boundaries of the annexing city or town (15-1-412)*



Zoning Assignment Review Criteria

The review criterion for a zoning assignment:

"1. The proposed zoning assignment is the most analogous City zone to the current zone when taking into consideration allowed uses. Zoning for standard county zones shall be assigned based on the policy document, while zones not listed on the policy document and terminated City zones shall be assigned a City zone on a case-by-case basis." (UDC 2.2.8.d.1)

If the assigned zone is not the desired zone, please submit for a separate zoning map amendment.

Check the box to acknowledge this requirement.*



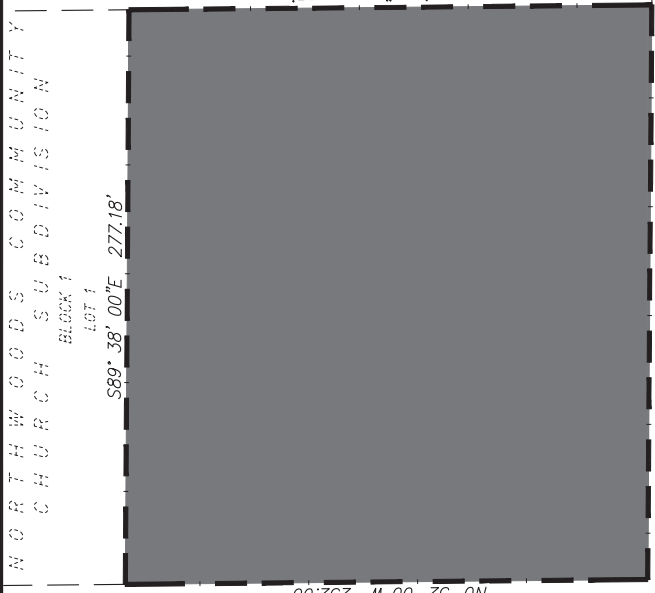
Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*



Cotton D Jones

Feb 14, 2024



DELL RANGE BOULEVARD (80' RW)

SUBDIVISION CORRECTED
BLOCK 7

VICINITY MAP

LEGEND

- PROPOSED AREA FOR ANNEXATION
- EXISTING CITY LIMITS
- FOUND 1/2" IRON PIPE

FILED RECORD

LEGEND

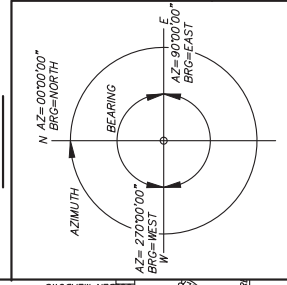
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MAYOR - PATRICK COLLINS ATTEST: CITY CLERK - KRISTINA F. JONES

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Drawn by: CDJ
Date: JANUARY, 2024

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